

Republic of the Philippines
HOUSE OF REPRESENTATIVES
Quezon City

NINETEENTH CONGRESS
Second Regular Session

HOUSE BILL NO. 10567



Introduced by **HON. LUIS RAYMUND “LRAY” F. VILLAFUERTE, JR.**
AND HON. MIGUEL LUIS “MIGZ” R. VILLAFUERTE

AN ACT
EXACTING ACCOUNTABILITY AND TRANSPARENCY IN THE PRODUCTION
OR DISTRIBUTION OF DEEPAKES IN THE PHILIPPINES TO PREVENT
THREATS FROM ITS EXPLOITATION OR MISUSE

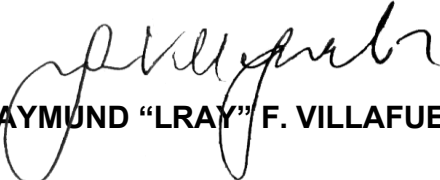
In 2018, Jordan Poole posted a deepfake video of former US President Obama insulting former US President Trump, and warned the public of the dangers of using deepfake media. The following year, in 2019, the US House Intelligence Committee conducted hearings on the potential threats of deepfakes to national security. Since then, generative Artificial Intelligence and deepfakes have developed rapidly that they have become more accessible and also more difficult to detect.

Deepfake technology creates new possibilities in filmmaking, and includes accessible and affordable video production. However, they have also become infamous for their potential use in harassment, intimidation, creating child abuse material, pornographic videos, fake news, hoaxes, financial fraud, and other types of misinformation.

Governments around the world are moving towards regulating generative artificial intelligence and deepfakes. Most are concerned about stifling freedom of speech. However, the right to freedom of expression is not absolute. It carries responsibilities and it may, therefore, be subject to restrictions in the name of safeguarding the rights of others.

Because of the many dangers of deepfakes and the extreme difficulty of discerning alteration from reality, this proposed bill requires the responsible use of deepfake by requiring disclosures in the interest of transparency and accountability in the use of the said technology.

The immediate approval of this bill is earnestly sought.


LUIS RAYMUND “LRAY” F. VILLAFUERTE, JR.


MIGUEL LUIS R. VILLAFUERTE

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Be it enacted by the Senate and House of Representatives of the Philippines in Congress assembled:

SECTION 1. *Short Title.* – This Act shall be known as the “*Deepfake Accountability and Transparency Act*”.

SECTION 2. *Declaration of Policy.* – The State recognizes the vital role of free speech in society. Towards this end, the State shall ensure that free speech is carried out in a legitimate and responsible manner.

SECTION 3. *Definition of Terms.* – For purposes of this Act, the following definitions shall apply to the following terms:

- a. ***Deepfake*** means any video recording, motion-picture film, sound recording, electronic image, or photograph, or any technological representation of speech or conduct substantially derivative thereof—
 - (A) which appears to authentically depict any speech or conduct of a person who did not in fact engage in such speech or conduct; and
 - (B) the production of which was substantially dependent upon technical means, rather than the ability of another person to physically or verbally impersonate such person.
- b. ***Artificial intelligence or AI*** means computerized methods and tools, including but not limited to machine learning and natural language processing, that act in a way that resembles human cognitive abilities when it comes to solving problems or performing certain tasks.
- c. ***Generative AI system*** means any system, tool or platform that uses artificial intelligence to generate or substantially modify video, audio, print or text content.

SECTION 4. Deepfake Disclosure Requirement. – Any person who, using AI, generative AI system, or any other means or facility, produces or distributes a deepfake, with the intent to distribute such deepfake over the internet or knowledge that such deepfake shall be so distributed, shall ensure such deepfake contains the following disclosures:

A. Audiovisual disclosure – Any deepfake that contains both an audio and a visual element shall include:

- (1) not less than one clearly articulated verbal statement that identifies the record as containing altered audio and visual elements, and a concise description of the extent of such alteration;
- (2) an unobscured written statement in clearly readable text appearing at the bottom of the image throughout the duration of the visual element that identifies the record as containing altered audio and visual elements, and a concise description of the extent of such alteration; and
- (3) a link, icon, or similar tool to signal that the content has been altered by, or is product of, generative artificial intelligence or similar technology.

B. Visual disclosure – Any deepfake exclusively containing a visual element shall include an unobscured written statement in clearly readable text appearing at the bottom of the image throughout the duration of the visual element that identifies the record as containing altered visual elements, and either—

- (1) a concise description of the extent of such alteration; or
- (2) a clearly visible link, icon, or similar tool to signal that the content has been altered by, or is the product of, generative artificial intelligence or similar technology.

C. Audio disclosure – Any advanced technological false personation records exclusively containing an audio element shall include, at the beginning of such record, a clearly articulated verbal statement that identifies the record as containing altered audio elements and a concise description of the extent of such alteration, and in the event such record exceeds two minutes in length, not less than one additional clearly articulated verbal statement and additional concise description at some interval during each two-minute period thereafter.

Section 5. Penalty. – Any person who knowingly fails to comply with Section 4 shall be penalized with Five Million Pesos (PhP5,000,000.00). Any person who removes, alters or causes another to remove or alter the disclosures in compliance with Section 4 shall be penalized with Two Million Pesos (PhP2,000,000.00) and Three Million Pesos (PhP3,000,000.00) for every violation thereafter.

SECTION 6. Implementing Rules and Regulations. – The Department of Information and Communications Technology (DICT) in coordination with the Department of Science and Technology (DOST), Department of Education (DEPED), and Department of Trade and Industry (DTI) shall promulgate not later than thirty (30) days upon the effectivity of this Act the necessary rules and regulations for its effective implementation.

SECTION 7. *Separability Clause.* – If any section or part of this Act is held unconstitutional or invalid, the other sections or provisions not otherwise affected shall remain in full force and effect.

SECTION 8. *Repealing Clause.* – All laws, decrees, executive orders, rules and regulations, issuances or any part thereof inconsistent with the provisions of this Act, are hereby repealed, amended or modified accordingly.

SECTION 9. *Effectivity.* – This Act shall take effect fifteen (15) days after its publication either in the Official Gazette or in at least two (2) national newspapers of general circulation.

Approved,